

INVITATION TO RFP DOCUMENTS

PART I

INSTRUCTIONS TO PROPOSERS

PROPRIETARY - TM TECHNOLOGY SERVICES SDN. BHD. (200201003726(571389 - H))

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TABLE OF CONTENTS

1.	PURPOSE OF INSTRUCTIONS TO PROPOSERS	3
2.	PREPARATION OF PROPOSAL	3
3.	OMISSIONS/ERRORS	4
4.	CHECK LIST	4
5.	STATEMENT OF COMPLIANCE.....	4
6.	PRICE SCHEDULE	6
7.	RFP SUBMISSION	6
8.	COMMUNICATION WITH PROPOSERS	10
9.	RFP DEPOSIT (NOT APPLICABLE).....	11
10.	LANGUAGE	11
11.	APPENDICES - PART III OF THE INVITATION TO RFP DOCUMENTS	11
12.	TM WHISTLEBLOWING CHANNEL	11
13.	CONFLICT OF INTERESTS	12

INSTRUCTIONS TO PROPOSERS

1. PURPOSE OF INSTRUCTIONS TO PROPOSERS

- 1.1. These INSTRUCTIONS TO PROPOSERS are a part of and are to be read together with all other parts of the Invitation to RFP Documents. All parts of the Invitation to RFP Documents are to be taken as mutually explanatory of each other.
- 1.2. The purpose of these INSTRUCTIONS TO PROPOSERS are to inform Proposers of the proper procedure to be adhered to and to satisfy the requirements of TM Technology Services Sdn. Bhd. (Hereinafter referred to as "TM") in respect of the submission of RFP and any award of Contract thereafter. Proposers are to note that strict compliance with the procedures set forth in these INSTRUCTIONS TO PROPOSERS is required by TM and that failure to do so may result in the submitted RFP being rejected for non-conformance and may not be further evaluated.

The term "Agreement" or "Contract" wherever use in this RFP Documents shall have the same meaning.

The Invitation to RFP Documents can only be released upon the signing of the Non-Solicitation Undertaking and Non-Disclosure Agreement.

- 1.3. The RFP Documents shall consist of the following parts:

Part	Description
Part I	Instructions to Proposers
Part II	Conditions of RFP
Part III	Appendices
Part IV	Terms and Conditions for Agreement
Part V	Technical Specifications
Part VI	Price Schedule

The Invitation to RFP Documents may be referred to as "RFP Documents" hereinafter.

2. PREPARATION OF PROPOSAL

- 2.1. The proposal shall:-
- 2.1.1. be in Bahasa Melayu and/or in the English language;
- 2.1.2. duly signed by the authorised representative at the designated signing pages for the **Appendices** in **Part III** of the RFP Documents and endorsed by the Proposer's official company or business stamp accordingly.
- 2.2. The Proposer undertakes that the RFP submitted are genuine, final and conclusive. Any incomplete pages without the signatures and endorsements (where applicable) may disqualify the Proposer from the RFP exercise, subject to TM's sole discretion.
- 2.3. Each item of the proposal submission shall be handwritten in black ink or type-written. Submissions written in pencil are not acceptable and shall invalidate the RFP submission by the Proposer.
- 2.4. Where applicable, all corrections, alterations and/or any other amendments whatsoever made in the proposal prior to the RFP submission shall be properly initialled by the Proposer.

- 2.5. Where applicable, all hardcopy documents which form part of the Proposer's submission shall be properly and securely bound in one or more ring binders with durable covers. The package title, as specified in **Clause 7.3** herein, shall be marked clearly on the cover of the binder. The covers shall be marked clearly with the title of the Proposal on the cover sheets.
- 2.6. The Proposer shall bear all costs and expenses howsoever incurred in preparing his proposal.
- 2.7. The Proposer shall ensure that the RFP Documents and the Proposer's submission are in executable form, clearly photocopied and professionally done.

3. OMISSIONS/ERRORS

- 3.1. The Proposer is advised to study, analyse and understand all terms, conditions and Technical Specifications very carefully and to make all necessary requests from TM for further information and/or clarification as per **Clause 8** herein before finalising the proposal for submission.

The term "Technical Specifications" or "Specifications" wherever use in this RFP Documents shall have the same meaning.

- 3.2. The Proposer shall be solely responsible for all omissions and/or errors in his proposal without any additional cost chargeable to TM. TM shall not entertain any request for variation of price or submission of additional quotes for items left out in the original submission on any grounds including but not limited to lack of knowledge or an oversight.
- 3.3. In the event of any inconsistencies between the total amounts of the RFP Value stated in Form of RFP [**Appendix B of Part III** of the RFP Documents] and the Price Schedule submitted by the Proposer in their proposal submission, TM shall reserve the right to benefit from the lowest price offered.

4. CHECK LIST

- 4.1. The Proposer is required to submit the Checklist of RFP Submission [**Appendix A of Part III** of the RFP Documents] duly marked and signed off by the Proposer's authorised representative to indicate the documents which are being submitted by the Proposer to TM.
- 4.2. Failure to furnish all of the information and documentations requested may result in disqualification and rejection of the RFP.

5. STATEMENT OF COMPLIANCE

- 5.1. In order to participate in this RFP exercise and by submitting the proposal, the Proposer is satisfied and agreeable to the terms and content of the RFP Documents, particularly:
- i) Instruction to Proposers; and
 - ii) Conditions of RFP
- 5.2. A Statement of Compliance shall be submitted by the Proposer in response to each Clause or sub-Clause of the Terms and Conditions of Agreement [**Appendix D of Part IV** of the RFP document] and the Technical Specifications [**Part V** of the RFP Documents] respectively. The details of the instruction shall be as follows:
- 5.3. Statement of Compliance to Terms and Conditions of Agreement:
- a) **Declaration of Compliance to the Terms and Conditions**

The Proposer shall ONLY submit a complete **Appendix D1 of Part IV** (Statement of Compliance to the Terms and Conditions) for full compliance of the Terms and Conditions of Agreement.

b) **Statement of Non Compliance to the Terms and Conditions of Agreement**

In the event there is/are any non-compliances to the Terms and Conditions of Agreement, the Proposer shall ONLY submit a complete **Appendix D2 of Part IV** (Statement of Non Compliance to the Terms and Conditions of Agreement).

For the avoidance of doubt, except for the listed non-compliance clause(s) under the **Appendix D2 of Part IV**, the rest of the clauses shall be deemed to be complied by the Proposer and the Proposer shall not request for any amendments on the complied clauses upon becoming a winning bidder in this RFP exercise.

5.4. **Statement of Compliance to Technical Specifications**

5.4.1. The Proposer must state either of the following responses against each and every Clause and sub-Clause of the Technical Specifications **respectively in the BIG Programme_SOC in Microsoft Word format**;

- i) Please indicate your compliance status by ticking (✓) either "Yes" or "No" for each requirement.
- ii) The Proposer is required to fully comply to the clauses marked as "**Critical Requirements (CRQ)**" and required to provide supporting evidence to validate the compliance, accompanied by supporting document(s). **Failing which, the Proposer shall be disqualified from the RFP exercise and their RFP submission shall be rejected.**

5.4.2. For any clauses marked as "Comply" by the Proposers, the Proposer is thereafter required to provide supporting evidences to validate the response, accompanied by supporting document(s). The supporting document(s) shall be in form of, including but not limited to brochures, technical reports, whitepapers and snapshots. These shall be stated clearly (including paragraph and page number) in the "references to Annexure" column of the compliance table.

5.4.3. Insufficient information, inadequate clarification and/or invalid references shall be regarded as "Not Comply". The Proposer's proposal submissions, which do not incorporate the above requirement(s), shall be deemed to be incomplete and will be rejected.

5.4.4. No other responses are permitted in the Statements of Compliance including "understood", "noted" or any explanations or statements of any kind. If the event occurs, TM shall regard such responses to be as "Non Comply". The Proposer shall fill in all columns of the Statements of Compliance and in particular make the appropriate cross-reference to the Proposer's Specifications.

5.4.5. Where the value of a particular parameter is asked for or where further details are required, the Proposer shall state them either in the space provided, or if the space given is insufficient, on a separate sheet of paper preferably of A4 size which shall be submitted as an annexure to the Statements of Compliance. All appended annexures shall be carefully referenced. RFP submissions which do not incorporate all the requisite details shall be deemed to be incomplete and may be rejected.

5.5. If the Proposer offers Solution by a third party, he/she shall be fully and solely responsible for the responses made in the Statement of Compliance with regards to the Solution offered.

5.6. The Statements of Compliance shall be the formal response by the Proposer to the technical and contractual requirements of the RFP exercise and it shall be the basis upon which the Contract shall be awarded. Therefore, the Proposer shall carefully and truthfully respond as

requested to each and every Clauses and sub-Clauses of the Terms and Conditions of Agreement and Technical Specifications respectively.

6. PRICE SCHEDULE

- 6.1. The Proposer shall submit his offered prices in the schedules as shown in the Price Schedule [Part VI of the RFP Documents]:

If the space provided is insufficient, the **Proposer** may continue on a separate sheet of paper preferably of A4 size, but the same format must be maintained. The **Proposer** shall also comply with the guidelines on the Price Schedule in Part VI of the **RFP** Documents.

- 6.2. Notwithstanding any other requirements in the RFP Documents, system price, Bill of Quantities ("BoQ") or otherwise, the Proposer is required to complete every schedules available in the Price Schedule, together with detailed breakdown of prices for Items necessary for the completion of the Works.
- 6.3. TM reserves its right to reject the offer in the event of incomplete pricing or changes on quantity and item in original BoQ in the Proposer's submission.
- 6.4. Any discount intended must be reflected directly in the unit price offered by the Proposer in the Price Schedule inclusive of the systems price and BoQ.
- 6.5. The sum total of the items in the Price Schedule shall be inserted in the Form of RFP [Appendix B of Part III of the RFP Documents] under "RFP Value".
- 6.6. The Proposer hereby fully aware that the price submission, if requested by TM to be submitted separately, i.e. via e-auction or during 2nd phase submission, shall become part of the RFP Document and shall be subjected to **Clause 7 – RFP Submission** requirement of this Invitation to RFP Documents. The price submission received later than the time and date stipulated by TM i.e. after the price submission Closing Date, shall not be considered by TM, notwithstanding the means of delivery or proof of the same and shall be disqualified from this RFP exercise.
- 6.7. The Proposer shall ensure that the unit price list is complete as no further additions during the contractual negotiation and implementation stage will be entertained. Any incomplete or inaccurate price list shall be considered as an error and omission pursuant to **Clause 3** of this **Part I – Instructions to Proposer**.
- 6.8. All prices in RFP proposal and Agreement shall only be quoted in Ringgit Malaysia (RM) unless otherwise informed by TM.
- 6.9. The offered prices by the Proposer shall be inclusive of all taxes. All taxes refers to Sales and Services Tax ("SST") or any other taxes payable to the Malaysian Government or charges that may be incurred and the Proposer is required to declare what are the charges or taxes incurred.
- 6.10. TM shall not be responsible for, and shall not compensate any losses if the successful Proposer fails to recover the expected total investment pertaining to the RFP and Agreement.

7. RFP SUBMISSION

- 7.1. The Proposal submission shall be made in two (2) phases with the details as follows:

- (i) **Phase 1 Submission** - the documentation details shall be pursuant to clause 7.2.1 of this Part I – Instructions to Proposers and the date of the submission of the documents mentioned in clause 7.7.1 below.
- (ii) **Phase 2 Submission** - the documentation details shall be pursuant to clause 7.2.2 of this Part I – Instructions to Proposers and the date of the submission will be communicated to Proposer via email officially by TM authorized representatives.

7.2. The Proposer shall adhere to the submission package with the details of the documents as per table below:

7.2.1. **Phase 1 Submission**

7.2.1.1. The Proposer is required to submit a Virus-free softcopy Proposal in three (3) separate folders in accordance with Clause 7.2.1.1, namely the following:

- Volume I (The Summary Proposal)
- Volume II (The Commercial Proposal)
- Volume III (The Technical Proposal)

The items above shall collectively be referred to as “the Proposal” hereinafter. Should the Proposer fail to comply with the **Critical Criteria** requirements, TM reserves the right to disqualify the Proposer.

(a)	<u>Volume I (Summary of Proposal)</u>
	The Volume I (Summary of Proposal) shall contain the following completed documents: (i) Covering letter which summarize your overall proposal and shall include a list of all documents that comprise the offer submission; <i>Each Proposer shall make the following representations and warranty in its Proposal Cover Letter, the falsity of which might result in rejection of its Proposal by TM in its sole discretion:</i> <i>“The information contained in this Proposal or any part thereof, including its exhibits, schedules, and other documents and instruments, delivered or to be delivered to TM, is true, accurate, and complete. This Proposal includes all information necessary to ensure that the statements therein do not in whole or in part mislead TM as to any material fact.”</i> (ii) Checklist of RFP Submission as per Appendix A of Part III of the RFP Documents; (iii) Form of RFP as per Appendix B of Part III of the RFP Documents.
(b)	<u>Volume II (The Commercial Proposal)</u>

	The Volume II (Commercial Proposal) shall contain the following completed documents: (i) Completed Statement of Compliance for Terms and Conditions of Agreement as per Appendix D of Part IV of the RFP Documents; a) to ONLY submit Appendix D1 (Statement of Compliance to the Terms and Conditions) in Microsoft Word format for full compliance of the Terms and Conditions of Agreement; or b) to ONLY submit the completed Appendix D2 (Statement of Non Compliance to the Terms and Conditions of Agreement) in Microsoft Excel format if there is/are any non-compliances to the Terms and Conditions of Agreement; (ii) Completed Proposer's Company Profile as per Appendix F1 of Part III of the RFP Documents; (iii) Summary of Proposer's Financial Strength as per Appendix F2 of Part III of the RFP Document in Microsoft Excel format; (iv) Company Information extracted from the Suruhanjaya Syarikat Malaysia (SSM e-Info portal) and the date of the document shall be within three (3) months before RFP Closing Date. a) Digital Certified True Copy (DCTC) Document of Company Profile; b) Attestation of Company Good Standing (ACGS); and c) Financial comparison for the last three (3) years from the RFP float date. (v) Proposer's Audited Company Annual Report and its Parent Company (if any) for year 2025, 2024, 2023 and 2022 / Audited Management Account / Company's Income Tax Statement or any other similar document to show/to proof on company's financial standing; (vi) Bank Facility Letter; (vii) Letter of Funding & Investor Support OR Term Sheet; (viii) Non-Disclosure Agreement as per Appendix G of Part III of the RFP Documents; (ix) Declaration of Independency from Suspension, Blacklisting, Bankruptcy, Legal Suit and Offence, Status or Affiliation with TM Group's External Auditors and Restriction Cum Declaration On Related Party Transaction (RPT)/Recurrent Related Party Transaction (RRPT) as per Appendix H of Part III of the RFP Documents; (x) Principal's Warranty for each component involves [applicable if the Proposer is not the Principal of the Equipment as per Appendix I of Part III; (IF APPLICABLE) (xi) Letter of Undertaking for each component involved by Proposer's Product Principal and/or suppliers as per Appendix J of Part III of the Invitation to RFP Documents; (IF APPLICABLE) (xii) Proposer OSH Management System Questionnaire as per Appendix K of Part III of the RFP Documents; (IF APPLICABLE) (xiii) Integrity Pledge (IP) by TM Business Partner as per Appendix L of Part III of the RFP Documents;
(c)	<u>Volume III (The Technical Proposal)</u>
	The Volume III (Technical Proposal) shall contain the following completed documents;

	(i) Statement of Compliance and its related evidences with respect to the Technical Specifications as per BIG Programme_SOC in Microsoft Word format of Part V; (ii) Completed BoQ as per Part VI - Price Schedule (WITHOUT PRICE). (iii) Proposer's Specifications and any other literature deemed necessary. (iv) Appendix B.1 Information Security Annex No list or schedule with prices should be included in the Technical Proposal package. TM reserves the right to disqualify a Proposal if there is inclusion of such data in the Technical Proposal package.
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7.2.2. **Phase 2 Submission**

The Proposer is required to submit Price Schedule (**WITH PRICE**) in accordance with **Clause 7.2.2**, namely the following:

- (i) Form of RFP as per **Appendix B** of **Part III** of the Invitation to RFP Documents;
- (ii) **Part VI - Price Schedule (WITH PRICE)**;

7.3. Where hardcopy submission is required, all packages shall be clearly marked with TM's RFP reference (as indicated in this RFP document) at the top left hand corner of the packages and the description:

RFP Reference:

RFP Ref: NAE/2026/RFP/01/A1G/BIG

RFP Description:

CLOSED REQUEST FOR PROPOSAL (RFP) FOR TM & CRADLE BIG 2.0 PROGRAMME: DESIGN AND DEVELOPMENT OF PREDICTIVE AND PREVENTIVE PLATFORM TO ENHANCE FIBRE INFRASTRUCTURE RESILIENCE

shall be written at the central position of the packages.

7.4. **Documentation Fee (NOT APPLICABLE)**

7.5. **Status of Proposer**

7.5.1. The Proposer shall be a company

- (i) registered under Malaysian's Companies Law Act 2016 or Companies Act 1965 (which has been repealed and superseded by the Companies Act 2016) and remains validly incorporated under the Companies Act 2016; or
- (ii) registered abroad or a foreign company.

In the event that:

- (a) the Proposer is part of a group of related companies, and the companies related to the Proposer are as defined in the Companies Act 2016; and/or
- (b) the Proposer and the related companies falls under the definition of "Enterprise" in the Competition Act 2010,

the Proposer shall not be allowed to participate and submit any Proposal under this RFP exercise. The Proposer is required to declare the company's status on independency from participation of company(s) with common shareholders and/or related companies within the meaning of Companies Act 2016 in **Appendix L** of **Part III** of RFP Documents. Any contravention of this **Clause 7.5.1** may result in the rejection or disqualification of the RFP.

7.5.2. NOT APPLICABLE

7.5.3. NOT APPLICABLE

7.5.4. NOT APPLICABLE

7.6. Offer by Authorized System Integrator (NOT APPLICABLE)

7.7. RFP Closing Date

7.7.1. All Proposal submissions must be submitted before/on **RFP Closing Date and Time** as detailed out in the **Letter of RFP Invitation**.

7.7.2. RFP Proposal received later than the time and date stipulated in this **Clause 7.7.1** ("RFP Closing Date") shall not be considered by TM, notwithstanding the means of delivery or proof of the same.

7.8. Method of Submission

- (i) Proposer shall submit the Proposal via **SOFTCOPY** and shall **use electronic/digital signature** on every document where required except for RFP Deposit.
- (ii) TM will provide an **email** which contain information on the **URL link to submit the proposal**. Proposer can start uploading the documents into the designated submission folders once receive the **URL link**. Early submission is advisable due to the time required to upload all documentations into the portal.
- (iii) The portal for **RFP submission** is prepared with **three (3) folders** for **Phase 1** i.e. Volume I, Volume II and Volume III. Please refer to Part I Instruction to Proposer Clause 7.2 on the content of each Volume. Proposer is required to upload documents / appendix into correct folders.
- (iv) Proposer to **ensure all the documents for proposal submission are readable**. TM will not be responsible for any corrupted documents. TM reserves the right to reject any corrupted files/documents. Therefore, **Proposer is to ensure** all the **documents** are checked and verified **error-free** prior to submission to TM.

8. COMMUNICATION WITH PROPOSERS

8.1. TM encourages the Proposer to raise any questions or clarifications during the RFP briefing session concerning the interpretation of the Invitation to RFP Documents. TM only allows the Proposer's authorised representative to seek questions or clarifications to TM.

8.2. The date, time and venue of the RFP briefing session are stated in the RFP Notice. Any changes to the briefing date, time and venue, will be communicated officially to the Proposer's authorised representative via letter/email. Unless pre-determined by TM, there is no maximum limit of Proposer's authorised representatives during the RFP briefing session.

- 8.3. The Proposer who requires further clarifications on the RFP exercise, shall submit their enquiries to TM in writing by email. TM's representative will prepare and submit written replies to such queries. The replies, together with the text of the queries will be issued to all of the Proposers without quoting the source of the queries, and all Proposers shall be required to acknowledge receipt of the information. Replies to queries, where relevant and applicable, will be issued as addenda to the RFP Documents. No inquiry from the Proposer by telephone shall be entertained and accepted by TM.

- 8.4. All communications regarding to this RFP exercise shall be sent to the TM authorized representative as follows:

Name	Email Address
Nadia Binti Mohamed Nawawi	nadia.mohamednawawi@tm.com.my
Puteri Nur Aisyah Binti Abd Rahim	puteri.rahim@tm.com.my

In the event that the Proposer is contacting TM personnel other than those mentioned personnel as specified above, TM reserves the right to disqualify the Proposal submitted by the Proposer and will not be responsible for any information received by the Proposer.

- 8.5. Only the Proposer's authorised representative as stipulated under **Clause 1.3** in **Appendix F1** of **Part III** of the Invitation to RFP Documents is allowed to communicate for clarification of any matter relating to the RFP with TM's representative. TM shall not entertain any communication other than with those stated as Proposer's authorised representative.

9. RFP DEPOSIT (NOT APPLICABLE)

10. LANGUAGE

All data, documents, descriptions, diagrams, instructions, markings for ready identification of major items and correspondence shall be either in Bahasa Melayu or in the English language or a combination of both. The Proposer's servants or agents shall be proficient in both the written and spoken Bahasa Melayu and/or English language for the purpose of providing instructions, offering advisory services, training and any other submission as requested.

11. APPENDICES - Part III of the Invitation to RFP Documents

- 11.1. Proposers are required to adopt wholly the format set out in the appendices in Part III of the Invitation to RFP Documents. Failure to comply with this requirement may result in the disqualification of the Proposer's Proposal.
- 11.2. If the Proposer is not the principal of the Equipment/Item/Components, Proposer is required to furnish a Principal's/Manufacturer's warranty as per Appendix I. **(IF APPLICABLE)**
- 11.3. The Proposer is required to produce a Letter of Undertaking from each Proposer's product principal, sub-contractors and/or suppliers as per the format set out in **Appendix J** of **Part III**. **(IF APPLICABLE)**

12. TM WHISTLEBLOWING CHANNEL

- 12.1. In its effort to enhance and strengthen high ethics and integrity practices in TM, the Proposers are encouraged to channel concerns about illegal, unethical, improper business conduct affecting TM via TM Whistle-blowing Channel, TM Ethics Line as specified below:

TM Ethics Line

Tel : 1-800-88-2377 (Malaysia Only)
+603-22402377

Email : ethic@tm.com.my

- 12.2. The Proposers may raise the concerns and matters in an independent and unbiased manner. The Proposers are not required to prove the cases but rather to provide sufficient information in order for appropriate steps to be taken.
- 12.3. The Proposers will not be at risks to any form of victimization, retribution or retaliation from TM. This assurance does not however extend to those who are found to have raised matter under false or malicious intention.

13. CONFLICT OF INTERESTS

The Proposer shall not place itself, and shall ensure that its officers, employees, agents and advisers do not place themselves, in a position that may or does give rise to an actual, potential or perceived conflict of interest between the interests of TM and the Proposer during the RFP process, and which impinges on the Proposer's ability to render impartial, technically sound, and objective assistance or advice, or result in an unfair competitive advantage.

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